

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: December 11, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING RESPONDENTS' MOTION TO SEAL THE MOTION TO STRIKE

On November 12, 2024, Respondents filed a Motion to Strike Verification and Dismiss the Complaint ("Motion to Strike") with exhibits. Both the motion to strike and the exhibits were labeled as confidential but no motion for confidential treatment was filed. On December 6, 2024, an order was issued ruling on the motion to strike which noted that "Respondents' motion is labeled as confidential but no motion for confidential treatment was received. The Office of the Secretary is asked to keep the filing confidential until they can confirm whether or not confidentiality is sought. If it is, a motion for confidential treatment should be filed expeditiously." Order Denying Respondents' Motion to Strike the Verification and Dismiss the Complaint at 6.

On December 9, 2024, Respondents filed a Motion to File Under Seal Respondents' Motion to Strike ("Motion"). The short motion states: "The Presiding Officer issued a Protective Order governing discovery in this case on July 28, 2023. Pursuant to that order, Respondents seek leave to file the Motion to Strike the Verification of David Kastin and Dismiss the Complaint under seal and to file a redacted copy for the public docket." Motion at 1.

The December 5, 2024, Order Denying Complainant's Second Motion to Amend the Complaint states:

The parties should note that their protective order governs material exchanged between themselves. Just because information was confidential under the protective order does not mean that it will meet the Commission's standards for confidential treatment when used in the proceeding. For example, entire depositions may not be marked as confidential. Therefore, any information in briefs, proposed findings of fact, or the appendix must meet the Commission's confidentiality standards and the parties must file a motion explaining how those standards are met. See 46 C.F.R. § 502.141(j)(1) and the Initial Order at 5-6.

Order Denying Complainant's Second Motion to Amend the Complaint at 3.

The initial order in this proceeding specifically addressed confidential treatment, stating:

Confidential Material

19. *Stipulation* – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

20. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

21. *Depositions* – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark as confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.

22. *Filing* – Parties should file two versions of confidential filings marked on the cover page as the “confidential version” and the “public version.” 46 C.F.R. § 502.5. Parties may label all pages as “confidential” or “public” in the header or footer. Improperly marked filings may be rejected.

23. *Marking confidential material* – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. *Pagination and depiction of text on each page must be identical to that of the confidential version.* For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.

24. *Exhibits* – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. Entire exhibits should not be excluded, only those pages containing confidential material.

25. *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. 46 C.F.R. § 502.13.

26. *Confidential Request Table* – It is recommended that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table may include: (1) the bates range for confidential document requests, (2) the document’s description, (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions, and (4) the legal basis for the confidentiality request. If a particular bates range in an appendix does not include any confidential information, it does not need to be listed in the confidential materials list. If a supplemental appendix is later submitted, it is recommended that a new comprehensive confidential bates list be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests).

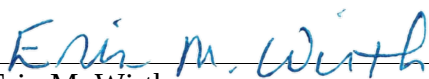
Example: [Party Name] Appendix - Confidential Bates Table

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
RX 8-9	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

Initial Order at 5-6.

Respondents’ motion is denied as it fails to meet the requirements above, which have been previously communicated to the parties. The vast majority of the motion to strike would not be entitled to confidential treatment under the Commission’s rules. If Respondents file a revised motion showing that specific information in the motion to strike, such as the profit-per-container number is confidential, that will be considered. However, only the number would be entitled to confidential treatment, not the rest of the sentence. Additionally, entire depositions are not entitled to confidential treatment. It is expected that everyone filing documents on behalf of the parties is familiar with these requirements. The parties will be given one final opportunity to submit a significantly narrowed request for confidential treatment.

Accordingly, it is **ORDERED** that the Respondents’ motion to file the motion to strike under seal is **DENIED WITHOUT PREJUDICE**. Either party may file a revised request for confidential treatment by December 18, 2024. The Office of the Secretary is asked to keep the filing confidential until that time.


Erin M. Wirth
Chief Administrative Law Judge